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|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| ATTORNEY OR PARTY WITHOUT ATTORNEY ( <i>Name, state bar number, and address</i> ):<br><br><br>TELEPHONE NO.: _____ FAX NO.: _____<br>ATTORNEY FOR ( <i>Name</i> ): _____ | <div style="border: 2px solid red; padding: 5px; text-align: center;"> <p style="color: red; margin: 0;">To keep other people from seeing what you entered on your form, please press the Clear This Form button at the end of the form when finished.</p> </div> |
| NAME OF COURT:<br>STREET ADDRESS:<br>MAILING ADDRESS:<br>CITY AND ZIP CODE:<br>BRANCH NAME:                                                                              |                                                                                                                                                                                                                                                                   |
| CASE NAME:                                                                                                                                                               | CASE NUMBER:                                                                                                                                                                                                                                                      |
| <b>DECLARATION IN SUPPORT OF ATTORNEY'S<br/>MOTION TO BE RELIEVED AS COUNSEL—CIVIL</b>                                                                                   | HEARING DATE:<br>DEPT.: _____ TIME: _____<br>BEFORE HON.: _____<br>DATE ACTION FILED:<br>TRIAL DATE:                                                                                                                                                              |

1. **Attorney and Represented Party.** Attorney (*name*):  
is presently counsel of record for (*name of party*):  
in the above-captioned action or proceeding.
2. **Reasons for Motion.** Attorney makes this motion to be relieved as counsel under Code of Civil Procedure section 284(2) instead of filing a consent under section 284(1) for the following reasons (*describe*):

☐ Continued on Attachment 2.

### 3. Service

#### a. Attorney has

- (1) ☐ personally served the client with copies of the motion papers filed with this declaration. A copy of the proof of service will be filed with the court at least 5 days before the hearing.
- (2) ☐ served the client by mail at the client's last known address with copies of the motion papers served with this declaration.

#### b. If the client has been served by mail at the client's last known address, attorney has

- (1) ☐ confirmed within the past 30 days that the address is current
  - (a) ☐ by mail, return receipt requested.
  - (b) ☐ by telephone.
  - (c) ☐ by conversation.
  - (d) ☐ by other means (*specify*):

(Continued on reverse)

|            |              |
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| CASE NAME: | CASE NUMBER: |
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3. b. (2) ☐ been unable to confirm that the address is current or to locate a more current address for the client after making the following efforts:
- (a) ☐ mailing the motion papers to the client's last known address, return receipt requested.
  - (b) ☐ calling the client's last known telephone number or numbers.
  - (c) ☐ contacting persons familiar with the client (*specify*):
  - (d) ☐ conducting a search (*describe*):
  - (e) ☐ other (*specify*):
- c. Even if attorney has been unable to serve the client with the moving papers, the court should grant attorney's motion to be relieved as counsel of record (*explain*):
4. The next hearing scheduled in this action or proceeding
- a. ☐ is not yet set.
  - b. ☐ is set as follows (*specify the date, time, and place*):
  - c. ☐ concerns (*describe the subject matter of the hearing*):
- ☐ Continued on Attachment 4.
5. The following additional hearings and other proceedings (including discovery matters) are presently scheduled in this case (*for each, describe the date, time, place, and subject matter*):
- ☐ Continued on Attachment 5.
6. Trial in this action or proceeding
- a. ☐ is not yet set.
  - b. ☐ is set as follows (*specify the date, time, and place*):
7. **Other.** Other matters that the court should consider in determining whether to grant this motion are the following (*explain*):

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.  
Date:

\_\_\_\_\_  
(TYPE OR PRINT NAME)

▶

\_\_\_\_\_  
(SIGNATURE OF DECLARANT)

8. Number of pages attached: \_\_\_\_\_